LIVE PERFORMANCE, FESTIVAL APPEARANCE AND BROADCAST CAPTURE AGREEMENT

THIS LIVE PERFORMANCE, FESTIVAL APPEARANCE AND BROADCAST CAPTURE AGREEMENT (this "Agreement") is made this 18th day of November, 2026 (the "Effective Date"),

BY AND BETWEEN:

1. RIFT VALLEY LIVE EVENTS & PROMOTIONS LIMITED, a company incorporated in the Republic of Kenya under the Companies Act, 2015, ofKaren Office Park, Lang'ata Road, P.O. Box 77210-00502, Nairobi, Kenya (hereinafter referred to as the "Promoter", which expression shall include its event sponsors, media partners, and assigns);

AND

2. JOHN DOE, an adult Kenyan performing artist and musician professionally known as "John Doe", of P.O. Box 45102-00100, Nairobi, Kenya (hereinafter referred to as the "Artist").

RECITALS

A. WHEREAS, the Promoter is organizing and promoting an outdoor music and lifestyle festival known as "The Great Rift Sunset Festival 2026" (the "Event") to be held at Carnivore Grounds, Nairobi on Saturday, 19th December, 2026 (the "Event Date").

B. WHEREAS, the Promoter wishes to engage the Artist (together with the Artist's backing band and DJ) to perform a live musical set at the Event and participate in pre-event promotional activations, and the Artist has agreed to accept such engagement upon the terms and conditions set forth herein.

NOW IT IS HEREBY AGREED as follows:

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1. ENGAGEMENT AND PERFORMANCE SPECIFICATIONS

1.1 Live Performance Set. The Artist shall appear in person at the Venue on the Event Date and perform a continuous live musical set of not less than sixty (60) minutes and not more than seventy-five (75) minutes (the "Performance"), backed by a live four-piece band and DJ provided by the Artist at the Artist's own expense.

1.2 Unilateral Billing and Slot Adjustment. While the Artist is tentatively scheduled for an evening performance slot at 21:30 EAT, the Promoter reserves the sole and absolute right to adjust the running order, stage assignment, billing order on posters, and exact set time of the Performance (whether earlier in the afternoon or later after midnight) at any time on or before the Event Date without reduction or increase in the Performance Fee.

1.3 Compulsory Pre-Event Promotional Duties. As an integral part of the consideration hereunder, and for no additional fee, the Artist shall:

(a) attend two (2) morning radio and television media tour interviews in Nairobi during the week preceding the Event Date;

(b) publish at least four (4) promotional feed posts and eight (8) Instagram/TikTok Stories containing the official Event poster and ticketing link on the Artist's social media accounts; and

(c) attend a ninety-minute (90-minute) VIP Sponsor Meet-and-Greet cocktail session immediately prior to or following the Performance.

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2. MANDATORY SOUNDCHECK AND LATENESS DEDUCTIONS

2.1 Early Morning Soundcheck. The Artist and all accompanying band members must arrive at the Venue for technical line-check and soundcheck at 07:00 AM EAT sharp on the Event Date.

2.2 Automatic Lateness Penalty. Time is strictly of the essence. If the Artist (or any member of the Artist's band) arrives more than fifteen (15) minutes late for the 07:00 AM soundcheck or for the Artist's assigned stage call-time, the Promoter shall be entitled to deduct twenty-five percent (25%) of the Headline Performance Fee for every fifteen (15) minutes (or part thereof) of delay, and may forfeit the Artist's soundcheck slot entirely.

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3. PERFORMANCE FEE, DEPOSIT AND GATE BREAK-EVEN OVERRIDE

3.1 Headline Performance Fee. Subject to the deductions, conditions, and Clause 3.3 gate threshold set forth herein, the Promoter agrees to pay the Artist an all-inclusive Headline Performance Fee of Kenya Shillings One Hundred and Eighty Thousand (KES 180,000) (the "Performance Fee"), which sum is wholly inclusive of all band member wages, DJ fees, rehearsal costs, wardrobe, and transport within Nairobi County.

3.2 10% Booking Deposit and Net-30 Post-Event Settlement. The Performance Fee shall be payable as follows:

(a) Booking Deposit (10%): Ten percent (10%) of the Performance Fee, being Kenya Shillings Eighteen Thousand (KES 18,000), payable within forty-eight (48) hours prior to the Event Date upon confirmation that the Artist has completed all social media posts required under Clause 1.3(b); and

(b) Post-Event Balance (90%): Ninety percent (90%) of the Performance Fee, being Kenya Shillings One Hundred and Sixty-Two Thousand (KES 162,000), payable within thirty (30) business days following the Event Date, subject strictly to Clause 3.3 below.

3.3 Gate Attendance Break-Even Override. Notwithstanding Clause 3.1 or Clause 3.2(b) above, the Artist acknowledges that the Event is a commercial venture dependent upon ticket sales. If total paid, non-complimentary ticket attendance at the Event (as certified by the Promoter's ticketing platform) is fewer than two thousand (2,000) paid attendees (the "Minimum Gate Threshold"), the 90% Post-Event Balance of KES 162,000 shall not be payable as a guaranteed flat fee, and shall instead be automatically converted into a pro-rata revenue share equal to five percent (5%) of Net Box Office Profits (after the Promoter first recoups all venue hire, stage, sound, lighting, security, county permit, marketing, and international headliner expenses).

3.4 Barter Hospitality Offset. Any food, beverages, or extra backstage wristbands requested by the Artist or Artist's entourage beyond the four (4) standard band passes allocated by the Promoter shall be charged at full retail menu prices and deducted directly from the Post-Event Balance.

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4. RADIUS EXCLUSIVITY (100 KM / 105 DAYS BLACKOUT)

4.1 Geographic and Temporal Blackout. To protect the ticket draw of the Event, the Artist covenants and agrees that during the period commencing sixty (60) days prior to the Event Date and ending forty-five (45) days after the Event Date (being one hundred and five (105) days in total), the Artist shall not publicly perform, headline, guest-appear, or advertise any live musical performance (whether ticketed, free, club appearance, campus concert, or corporate event) at any venue located within a one hundred (100) kilometer radius of Nairobi Central Business District or Nakuru City without the Promoter's prior written consent.

4.2 Remedy for Radius Breach. If the Artist performs or is advertised on any third-party event flyer within the restricted radius during the blackout period, the Promoter may immediately cancel the Artist's appearance at the Event, demand immediate refund of the Booking Deposit, and recover KES 250,000 as agreed liquidated damages for dilution of ticket sales.

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5. UNCOMPENSATED LIVE RECORDING, LIVESTREAM AND SPONSOR SYNC RIGHTS

5.1 Perpetual Audiovisual Capture and Commercial Sync. The Artist hereby grants to the Promoter, its media partners, and the Event's corporate title sponsors the irrevocable, worldwide, royalty-free right in perpetuity to:

(a) record, film, photograph, and livestream (via YouTube, TikTok Live, pay-per-view, and television broadcast) the entirety of the Artist's Performance at the Event; and

(b) edit, reproduce, synchronize, and use audio and video recordings of the Performance (including the musical compositions and master arrangements performed by the Artist) in post-event aftermovies, commercial advertisements for the Event's corporate beverage and telecommunications sponsors, and sponsored social media content without any synchronization fee, master use fee, or royalty payable to the Artist.

5.2 CMO License Responsibility. The Artist waives any direct claim against the Promoter or Event sponsors for performer's reproduction or audiovisual fixation royalties under the Copyright Act (Cap. 130, Laws of Kenya) in respect of the recordings made under Clause 5.1.

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6. MERCHANDISING AT THE VENUE

6.1 Hall Fee (40% to Promoter). The Artist may only sell official Artist merchandise at the Venue if approved in writing by the Promoter, and only through the Promoter's central merchandise tent, subject to the Promoter retaining forty percent (40%) of gross merchandise sales as a venue concession commission.

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7. CANCELLATION, WEATHER, PERMITS AND FORCE MAJEURE

7.1 No-Fault Cancellation by Promoter. If the Promoter cancels, postpones, or curtails the Event or the Artist's Performance due to rain, adverse weather, NEMA or Nairobi County noise-control enforcement, police security directives, power blackouts, equipment failure, withdrawal of a title sponsor, or insufficient advance ticket sales:

(a) the Promoter shall have zero liability to pay the 90% Post-Event Balance (or any cancellation fee); and

(b) at the Promoter's election, the Artist shall either refund the 10% Booking Deposit within seven (7) days of demand OR perform at a rescheduled event organized by the Promoter at any date within the next twelve (12) months for no additional deposit.

7.2 Artist Illness or Non-Appearance. If the Artist fails to appear and perform at the Event for any reason (including illness or flight/traffic delay), the Artist shall immediately refund the Booking Deposit and reimburse the Promoter for the full cost of hiring a replacement artist plus a promotional re-printing fee of KES 100,000.

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8. TECHNICAL EQUIPMENT, RISK AND INDEMNITY

8.1 As-Is Technical Production. The Artist shall perform using the stage, PA sound system, monitors, and microphones supplied by the Promoter's sound vendor on an "as-is" basis. No technical feedback, microphone cut-out, or power interruption during the Performance shall excuse the Artist from completing the set or entitle the Artist to terminate the Performance early.

8.2 Risk and Unilateral Indemnity. The Artist is solely responsible for the safety and insurance of the Artist's musical instruments, laptops, and band members. The Artist shall indemnify and hold harmless the Promoter and Venue owner against any damage to Venue equipment, copyright infringement claims arising from songs performed by the Artist during the Performance, or crowd incidents occurring during the Artist's set.

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9. GOVERNING LAW AND DISPUTE RESOLUTION

9.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the Republic of Kenya. Any dispute not resolved within thirty (30) days shall be submitted to the Small Claims Court or Chief Magistrate's Court at Milimani, Nairobi.

SIGNATURES

IN WITNESS WHEREOF, the Parties have signed this Agreement as of the Effective Date first written above.

SIGNED for and on behalf of RIFT VALLEY LIVE EVENTS & PROMOTIONS LIMITED:

Signature: _____
Name: Brian Kiprop Sang
Title: Festival Director & Executive Producer
Date: 18th November, 2026

SIGNED by the ARTIST:

Signature: _____
Name: JOHN DOE (p/k/a "John Doe")
Date: 18th November, 2026